

DAY v. GIFFIN

19CV43812

PLAINTIFF'S MOTION TO SPECIALLY SET CASE FOR TRIAL PURSUANT TO CODE OF CIVIL PROCEDURE § 36

A complaint was filed on January 15, 2019 for breach of oral and written contract, common count, negligent and intentional misrepresentation, and false promise.

Following the outbreak of COVID-19 in March 2020, the Judicial Council of California adopted an emergency rule that extended the deadline to bring a civil action to trial under section 583.310. Specifically, emergency rule 10(a), effective April 6, 2020, provides that 'Notwithstanding any other law, including section 583.310, for all civil actions filed on or before April 6, 2020, the time to bring the action to trial is extended by six months for a total time of five years and six months. (*State ex rel. Sills v. Gharib-Danesh* (2023) 88 Cal.App.5th 824, 840, quoting California. Rules of Court (CRC), appen. I, emergency rule 10(a).)

The additional six-month extension extended the Code of Civil Procedure (CCP) § 583.310 deadline for this case to July 15, 2024. Plaintiff now moves for a special trial setting to assure that the matter is determined upon the merits.

The moving papers did not include the required language of Local Rule 3.3.7.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285.

Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the

recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In the instant matter, the Court finds exigent circumstances. (Plaintiff is cautioned this is a rare instance where the Court does not deny a pending motion for the failure to include the mandated language.)

A motion to specially set to avoid the bar of the five-year statute raises the same issues as a motion for discretionary dismissal for failure to prosecute. (CCP §§ 36, 583.410, 583.420; *Salas v. Sears, Roebuck & Co.* (1986) 42 Cal.3rd 342, 346.) The trial court should consider the criteria listed in California Rules of Court, rule 3.1342 in ruling on a motion to specially set under CCP § 36(e), or in ruling on a discretionary motion to dismiss. (*Salas, supra* at p. 346, fn. 4; *Biondi, Flemming & Gonzalez v. Braham* (1990) 218 Cal. App. 3d 842, 847.)

When a grant of preferential setting is necessary to avoid mandatory dismissal of the case under CCP §§ 583.310, 583.360, and the party seeking the preference has shown reasonable diligence in prosecuting the action, while the opposing party has made no showing of prejudice, the possibility of mandatory dismissal is sufficient consideration to compel granting of relief under CCP § 36(e), and refusal to do so constitutes an abuse of discretion (*Schmitt v. Superior Court* (1989) 216 Cal. App. 3rd 453, 456; *National Secretarial Service, Inc. v. Froehlich* (1989) 210 Cal. App. 3rd 510, 520–521; *Dick v. Superior Court* (1986) 185 Cal. App. 3rd 1159, 1164–1168 (construing former Code Civ. Proc. § 36(d) now see CCP § 36(e))).

The court applies the criteria of California Rule of Court 3.1342 and finds that the plaintiff diligently served the defendants, obtained a default judgment, prepared for defendant's motion to set aside, agreed to set judgment aside, dismissed a defendant, and regularly reported to the court with frequent Case Management statements, all amidst the circumstances of COVID-19. The court also recognizes CCP § 583.130's policy, which favors trial or other disposition of an action on the merits, over the policy that mandates dismissal for failure to proceed.

The Court **GRANTS** Plaintiff's Motion to Specially Set Case for Trial Pursuant to Code of Civil Procedure § 36. The Mandatory Settlement Conference set for June 24, 2024, at 8:30 a.m. in Department 2 is confirmed. Trial is set for July 10, 2024, at 8:30 a.m. in Dept. 3, Trial Confirmation Conference is set for July 9, 2024, at 11:30 a.m. in Dept. 2.

The Clerk shall provide notice of this Ruling to the parties forthwith. The Court will sign the Order submitted by plaintiff.

ZAMORA v. CLAPP

16CV41649

PLAINTIFF'S MOTION TO AMEND JUDGMENT

The Court of Appeal's Remittitur to the trial court was filed October 2, 2023, the plaintiff's motion for attorney's fees was timely filed October 27, 2023, and the order on plaintiff's motion for attorney's fees and defendant's motion to tax costs and strike reply Declarations was entered December 18, 2023.

Plaintiff now moves to amend the August 31, 2021, Judgment to conform to the Court's December 18, 2023, Order.

The moving papers did not include the required language of Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff. 7/1/06; As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285.

Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3.

All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court. [Emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.

In the instant matter, the Court finds that the unopposed Motion to Amend Judgment though set on Law and Motion calendar is akin to an administrative, or clerical, matter, and